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Case Number: 25NNCV07725 Hearing Date: June 25, 2026 Dept: P

[TENTATIVE] ORDER SUSTAINING DEFENDANT'S DEMURRER WITH LEAVE TO AMEND

I. INTRODUCTION

Plaintiff Steven Bryan ("Plaintiff"), in pro per, filed this action, captioned "Insurance Settlement," against Defendant GIECO CT Corporation Systems ("Defendant") on October 30, 2025. The action arises from an alleged incident on June 3, 2025, in which debris from a moving trash truck allegedly fell in front of Plaintiff's vehicle, causing damage that Plaintiff contends resulted in a total loss.

On December 17, 2025, Plaintiff filed a First Amended Complaint. On March 16, 2026, Defendant filed the instant demurrer. Plaintiff filed an opposition on June 9, 2026, and Defendant filed a reply on June 17, 2026.

Meet and confer

Pursuant to Code of Civil Procedure section 430.41, subdivision (a), the demurring party is required to meet and confer with the party who filed the pleading at least five days before the responsive pleading is due. This must occur in person, telephone or by video conference with the aim of resolving any objections raised in the demurrer. Additionally, the demurring party must file and serve a declaration detailing the meet and confer efforts. It should be noted, however, that the failure to meet and confer is not itself grounds for sustaining or overruling a demurrer or granting or denying a motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

Here, Defense counsel declares that she discussed the alleged pleading deficiencies with Plaintiff by telephone on March 16, 2026. Plaintiff disagreed that the Complaint was deficient and indicated he did not intend to amend it to address Defendant's concerns. Defense counsel thereafter advised Plaintiff that Defendant would proceed with the demurrer. (Sura Decl., ¶¶ 10-11.)

II. LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2

Cal.4th 962, 967.)

CCP section 430.10(f) provides that a pleading is uncertain if it is ambiguous and unintelligible. (See Code Civ. Proc., § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) "A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant cannot reasonably respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her." (*Weil & Brown, Civil Procedure Before Trial (The Rutter Group)* § 7:85 (emphasis in original).) "The objection of uncertainty does not go to the failure to allege sufficient facts." (*Brea v. McGlashan* (1934) 3 Cal.App.2d 454, 459.) "It goes to the doubt as to what the pleader means by the facts alleged." (*Id.*) "Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet." (*People v. Lim* (1941) 18 Cal.2d 872, 882.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

III. ANALYSIS

As a preliminary matter, the Court notes that Defendant's demurrer appears to be directed to Plaintiff's original Complaint, filed on October 30, 2025. Plaintiff subsequently filed and served a First Amended Complaint on December 17, 2025. Because an amended complaint supersedes the original pleading and becomes the operative complaint, the Court construes Defendant's demurrer as directed to the First Amended Complaint and analyzes the sufficiency of that pleading.

Plaintiff's Amended Complaint is uncertain

Defendant demurs to the Complaint on the ground that it is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty is strictly construed and is disfavored; however, it may be sustained where a pleading is so poorly drafted that the defendant cannot reasonably determine what issues must be admitted or denied.

The Court agrees that, as presently pled, the Complaint is uncertain. Although Plaintiff appears to challenge Defendant's handling of an insurance claim arising from damage to Plaintiff's vehicle, the Complaint does not clearly identify the legal theories asserted against Defendant. The pleading is captioned as an "Insurance Settlement" action, but it does not identify any specific causes of action. The Complaint references both the denial of insurance benefits and "defamation of facts relayed to plaintiff by defendant," yet it does not allege facts sufficient to identify the statements at issue, the persons involved, or the legal basis for recovery. As a result, Defendant cannot reasonably determine the claims being asserted or frame a responsive pleading.

Thus, the demurrer is SUSTAINED.

Plaintiff's Amended Complaint fails to state cause(s) of action

In addition to being uncertain, the First Amended Complaint fails to state facts sufficient to constitute a cause of action. Although Plaintiff does not expressly identify any causes of action, the allegations appear to concern Defendant's denial of insurance benefits and include a request for relief based on alleged defamation. Specifically, Plaintiff alleges that he "has

been the victim of defamation by Defendant, in that Defendant made false statements of fact concerning Plaintiff, which were untrue, unprivileged, and communicated to third parties, thereby causing harm to Plaintiff's reputation, emotional distress, and financial damage."

To state a claim for a breach of contract, a plaintiff must plead: '(1) the contract, (2) plaintiff's performance excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff therefrom.'" (Wall Street Network, Ltd. v. New York Times Co. (2008) 164 Cal.App.4th 1171, 1178.) Here, Plaintiff does not allege the existence or terms of any insurance contract, identify any contractual provision requiring coverage, plead his performance or excuse for nonperformance, or allege facts demonstrating that Defendant breached a contractual obligation. Rather, Plaintiff alleges only that Defendant denied his claim and offered compensation that Plaintiff believed was inadequate. These allegations are insufficient to state a cause of action for breach of contract.

Likewise, the elements of a claim for defamation (whether libel or slander) are: (1) Intentional publication by defendant of statement of fact; (2) that is false; (3) defamatory; (4) unprivileged; and (5) has a natural tendency to injure or that causes special damages. (Wong v. Jing (2010) 189 Cal.App.4th 1354, 1369; see Taus v. Loftus (2007) 40 Cal.4th 683, 720.) Civil Code section 45 provides, "Libel is a false and unprivileged publication by writing, printing, picture, effigy, or other fixed representation to the eye, which exposes any person to hatred, contempt, ridicule, or obloquy, or which causes him to be shunned or avoided, or which has a tendency to injure him in his occupation."

Defamation is an invasion of the interest in reputation. The tort involves the intentional publication of a statement of fact which is false, unprivileged, and has a natural tendency to injure or which causes special damage. (Smith v. Maldonado (1999) 72 Cal.App.4th 637, 645; Civil Code sections 45, 46.) Publication, which may be written (libel) or oral (slander), is defined as a communication to some third person who understands both the defamatory meaning of the statement and its application to the person to whom reference is made. Publication need not be to the public or a large group; communication to a single individual is sufficient. (Ibid; Cunningham v. Simpson (1969) 1 Cal.3d 301, 306.)

Here, Plaintiff alleges only that he "has been the victim of defamation by Defendant, in that Defendant made false statements of fact concerning Plaintiff, which were untrue, unprivileged, and communicated to third parties, thereby causing harm to Plaintiff's reputation, emotional distress, and financial damages." However, Plaintiff does not identify the allegedly defamatory statements, the person or persons who made the statements, the third parties to whom the statements were published, when the statements were made, or facts demonstrating that the statements were false. Rather, Plaintiff merely recites the elements of a defamation claim in conclusory fashion. Such allegations are insufficient to state a cause of action for defamation.

Based on the foregoing, the Court SUSTAINS the demurrer with 20 days' leave to amend.

IV. ORDER

The Court SUSTAINS the demurrer with 20 days' leave to amend.

Defendant is to give notice.

Dated: June 25, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT